

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2015-2047

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF ETHAN THOMAS, LICENSE NO. LPC 5362,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("the Board") and Ethan Thomas ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a Professional Counselor ("LPC") in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of Case No. 2015-2047. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or around April 17, 2015, Respondent abruptly left his employment at a treatment agency, failing to provide a notice of resignation to his supervisor and abandoning his clients.
 - b. On or around August 29, 2016, Respondent submitted to an evaluation, and the evaluator concluded that Respondent is not safe to practice as a LPC with reasonable skill and safety without treatment and monitoring.
 - c. Respondent failed to update his address with the Board.
5. By virtue of the facts admitted in paragraph 4 above, the Board finds that Respondent violated §12-43-222(1)(b), (g), and (f)(I), C.R.S., and Board Rule 8.

PROBATION

6. Respondent's license to practice professional counseling in the State of Colorado is hereby placed on probation for three (3) years commencing from the effective date of this Order or the date Respondent's therapist and practice monitor are approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

7. The period of probation is tolled during any time that Respondent is not practicing in this state, and the period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

8. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a LPC in Colorado, is being monitored by a therapist and practice monitor as noted below, and is in full compliance with all terms of this Order.

9. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of probation.

PSYCHOTHERAPY

10. During the first two (2) years of probation, Respondent shall undergo psychotherapy with a mental health provider approved by the Board ("therapist"). Within 30 days of the effective date of this Order, Respondent shall submit, in writing, three (3) proposed therapists for the Board's approval. Respondent shall include a program-approved therapist application from each potential therapist, with attached curriculum vita or resume. The therapist shall meet the following criteria:

- a. The therapist shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;
- b. It is recommended that the therapist have a minimum of five (5) years of experience and has not been subject to professional discipline;
- c. The therapist shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

11. After the Board's written approval of the therapist, Respondent and the therapist shall enter into a written contract for psychotherapy. Respondent shall not perform any act requiring a license to practice professional counseling until such time as the Board has approved Respondent's therapist and Respondent and therapist have entered into a written contract for monitoring.

12. The therapist shall conduct therapy and report to the Board in writing as follows:
- a. The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once each month, unless otherwise approved by the Board based on recommendations of the therapist;
 - b. The therapist shall report to the Board in writing both the progress of the psychotherapy and whether Respondent is able to practice with reasonable skill and safety for his clients, and must send a copy of each report to Respondent. The therapist shall submit his/her first report by the fifth day of the month following the first month of the psychotherapy. The therapist shall submit subsequent reports by the fifth day of every third month (i.e., on a quarterly basis) until the therapy is completed; and
 - c. In the first report, the therapist shall state that s/he has received and read a copy of this Order, the Board's file, and the therapy evaluator's report, and must state that s/he understands and agrees to the duties and responsibilities s/he is undertaking as Respondent's therapist.

13. If, at any time, the therapist is of the opinion that Respondent is practicing professional counseling in a manner that does not meet the generally accepted standards of practice or has a condition that renders him unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his care, the therapist shall report such opinion and the reasons for that opinion to the Board. The therapist shall make that report, in writing, within 48 hours of forming his/her opinion. The therapist shall send a copy of such report to Respondent when s/he sends the report to the Board. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

14. Either Respondent or his therapist may terminate the therapeutic relationship upon written notice to the other and the Board no less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event Respondent does not have another Board-approved therapist prior to the termination, Respondent shall cease the practice of professional counseling until he has another Board-approved therapist in place. The subsequent therapist shall conduct therapy with Respondent and report to the Board in accordance with this Order.

15. Respondent cannot practice professional counseling during the period of probation if he is not undergoing therapy in accordance with this Order, unless otherwise provided by the Board based on the recommendations of the therapist.

PRACTICE MONITOR

16. During the term of probation, Respondent's practice shall be monitored by a practice monitor. If the Board has not already approved Respondent's practice monitor,

Respondent must follow the same steps as outlined in paragraph 10 above in order to secure a practice monitor.

17. Respondent must have a practice monitor approved by the Board within two (2) months of the effective date of this Order. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of his practice until a practice monitor is approved.

18. After the Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and the practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

19. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and his qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether he has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

20. Should the Board determine from the practice monitor's evaluation that Respondent cannot practice any part of his practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease any part of the practice that the Board determines, based on the evaluation, he is not qualified, competent, or safe to conduct. Based on the Board's findings and the evaluation, the Board will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board finds Respondent is not qualified, competent, and safe to practice. Once Respondent satisfies the Board that he is qualified, competent, and safe to fully practice, Respondent may resume full practice.

21. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for one hour, or such longer time as the practice monitor deems necessary, for every 20 hours of client contact, but at least once each month. Respondent and his practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing professional counseling in accordance with generally accepted standards of practice and with skill and safety for his clients.

22. The practice monitor shall submit a written report to the Board on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be

submitted on the fifth day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Board, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

23. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board meeting.

24. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to his clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

25. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order, the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board within 30 days.

26. Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct his/her monitoring and report to the Board in accordance with this Order.

CONTINUING EDUCATION

27. During the term of probation, Respondent must successfully complete at least twenty (20) hours of Board-approved professional continuing education courses each year in the areas of ethics, recordkeeping, and client termination. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of each course, Respondent shall ensure that a certificate of completion is provided to the Board. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or to meet any other licensure requirements.

TERMS AND CONDITIONS

28. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

29. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

30. All expenses incurred or associated with psychotherapy, the practice evaluation, practice monitoring, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

31. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

32. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

33. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

34. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representatives.

35. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

36. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

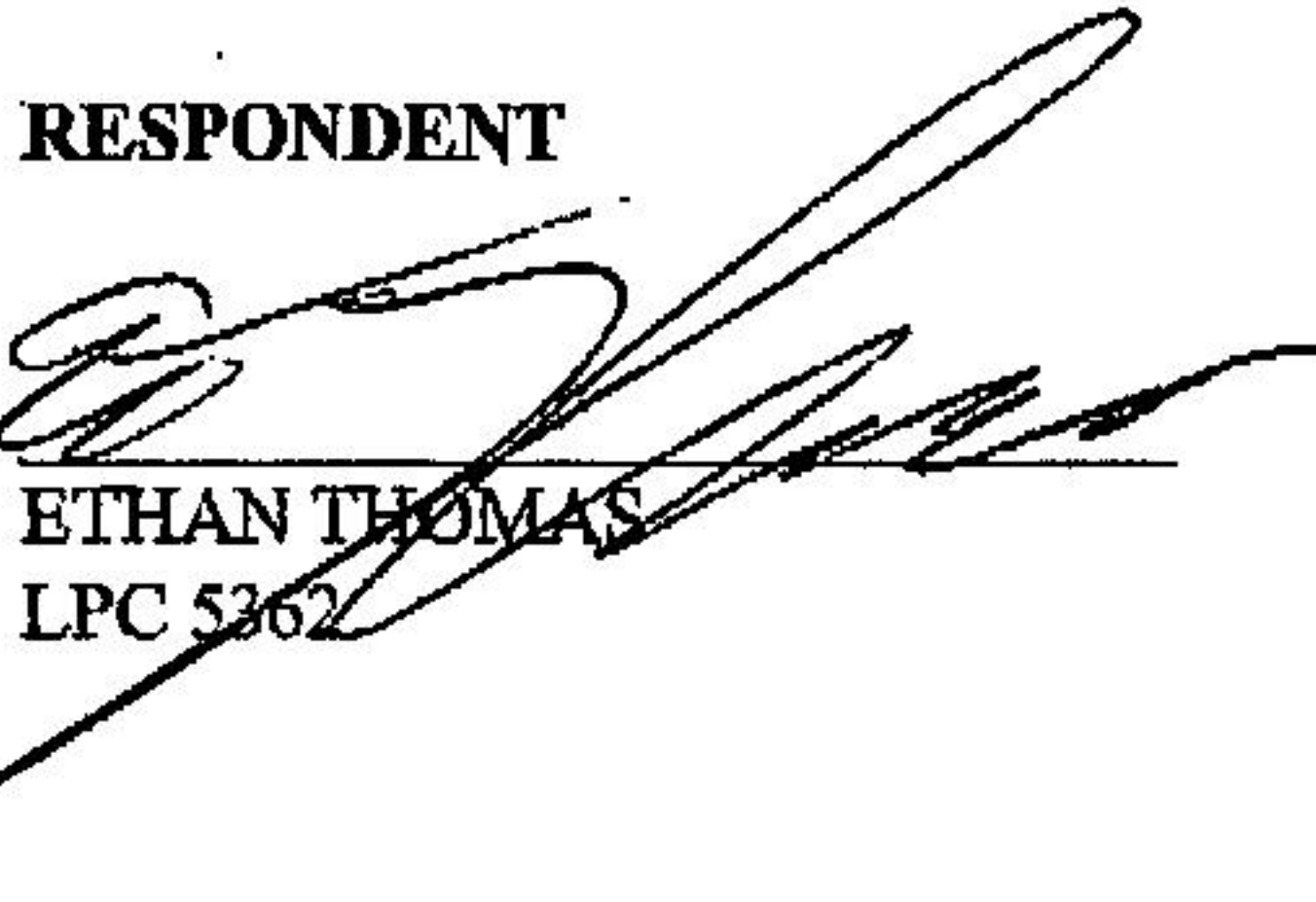
37. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

38. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

39. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT



ETHAN THOMAS
LPC 5362

AGREED TO AND ORDERED BY:

**BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS**



DARCIE MAGNUSON
Program Director

Effective this 24th day of

January, 2017.